

		The demurrer is therefore SUSTAINED with 20 days leave to amend. Case Management Conference is CONTINUED to October 30, 2026, at 9:30 a.m. Counsel for Defendant shall provide notice of this ruling.
9	Hallett v. Waterfront Resort Properties, LP et al	Before the Court at present are: (1) the "Motion For Order Requiring Vexatious Litigant And Pro-Per Plaintiff Darrell Hallett To Furnish Security Pursuant To CCP §391.3," filed on 12/23/25 by defendants Waterfront Resort Properties LP, De Anza Corporation, Newport Dunes Resort and Marina Partnership, Dunes Resort LP, Dunes Resort LLC, Terra Vista Management Inc. and Phillip Ravenna ("Defendants") ("<u>Motion 1</u>" below); and (2) the Motion for Reconsideration of Order Imposing Monetary Sanctions, filed on 3/20/26 by Plaintiff Darrell Hallett ("Plaintiff") ("<u>Motion 2</u>" below). <u>Motion 1</u> is GRANTED IN PART. As a preliminary matter, there are numerous defects in the papers presented by Plaintiff in opposition to the motion. Plaintiff is reminded that future compliance with all filing deadlines, page limits, and all other filing requirements is expected, and that future violations may result in a refusal to consider such improper submissions. On the merits, the Motion fails to show that Plaintiff has no reasonable likelihood of prevailing on any of the causes of action that he has presented here. As Defendants seek an order, under C.C.P. § 391.1, requiring Plaintiff to furnish security, they must thus show that Plaintiff, who has already been deemed a vexatious litigant, has no "reasonable probability" of prevailing in this action. The court may weigh the evidence presented on the motion. (<i>Moran v. Murtaugh Miller Meyer & Nelson, LLP</i> (2007) 40 Cal.4th 780, 782.) Plaintiff's Third Cause of Action asserts a claim for violation of Civil Code §1671. Plaintiff asserts therein that Defendants charged him \$5,325 for a total of 71 daily late fees, in violation of Civil Code §1671. (Complaint, ¶¶ 79 – 110, 202-203.) Plaintiff also asserts that Defendants "cancelled" his future reservations due to nonpayment, and offered to refund \$1,052.78 in late fees only if he agree to certain conditions. (Complaint ¶¶ 175-179.) Defendants failed to fully address those assertions, arguing instead that they offered to refund "the only late fees actually and inadvertently collected from him in the amount of \$302.87." (ROA 141, p. 11; Ravenna Decl., ¶¶ 8-10.) But Defendants failed to provide any evidence to show what late fees were assessed when, which were actually paid, and how they calculated the refund. Nor have they presented authority to establish that merely refunding the collected portion of an allegedly unlawful fee would suffice to avoid any liability under §1671, and for any related claim based thereon.

		Plaintiff's Opposition asserts, without offering any actual testimony or other evidence to support the claim, that he actually paid \$600 in late fees. But even without any admissible evidence from Plaintiff to refute Defendants' claims as to the amount collected, Defendants have failed to meet their burden for the Third Cause of Action. Defendants have thus failed to meet their burden here, as to the Defendants <i>collectively</i>. However, Defendants <i>have</i> shown that there does not appear to be a "reasonable probability" that Plaintiff will prevail in this action as to Defendant Phillip Ravenna or Defendant De Anza Corporation. Merely asserting in response that De Anza signed a sublease for Waterfront Resort Properties LP, or that Ravenna worked as the property manager for Terra Vista Management Inc., does not suffice. Nor does the evidence cited in ROA 348, at ¶ 31, suffice to show any basis for the claims as to those defendants. The Motion is therefore GRANTED IN PART, as to Defendant Phillip Ravenna or Defendant De Anza Corporation. However, the Motion has failed to demonstrate that \$100,000 is justified as the security sum for those two defendants. The Court instead finds that the security sum shall be set at \$50,000. <u>Motion 2 is DENIED.</u> Plaintiff has failed to show either that reconsideration under C.C.P. § 1008 is warranted here, or that the previously determined sanctions award should not remain. Counsel for Defendants to give notice of these rulings.
10	Gonzalez v. Aten Technology, Inc.	O/C
11	Rojas v. Alamirad Dental Corp	Before the Court is a motion to transfer venue and a motion to disqualify counsel filed by defendant Farzan Alamirad (Defendant) against plaintiff Elizabeth Rojas (Plaintiff). For the reasons set forth below, both motions are DENIED. <u>Motion to Transfer Venue:</u> Even if filed in a "proper" county, on appropriate motion, the court has discretionary power to transfer the case to any other county "[w]hen the convenience of witnesses and the ends of justice would be promoted by the change." (Code of Civ. Proc. § 397, subd. (c); <i>Rycz v. Sup. Ct. (McGarry)</i> (2022) 81 Cal.App.5th 824, 836.) Defendant has failed to identify any witnesses who reside in Los Angeles County and only makes generalized assertions that unnamed "percipient witnesses" reside in Los Angeles County. Defendant's main concern appears to be his own inconvenience in having to litigate in Orange County. (Alamirad Decl. ¶¶ 6-7.) However, it is only the convenience of the nonparty witnesses that is important. Absent extraordinary circumstances, the parties' conveniences are not considered – even if they are to testify. (<i>Wrin v. Ohlandt</i> (1931) 213 Cal.158, 160; <i>Simonian v. Simonian</i> (1950)